

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-2xvr-wyrp
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-8690
Comment on FR Doc # 2025-02305

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General Comment

I've been a working visual artist for over twenty years, and in the last couple of years I've seen my peers and profession wrecked by AI image generators.

Data scraping for image generation should be illegal, on both copyright grounds and unfair competition grounds.

These are not programs that "learn" or "create," they reassemble from what's fed into them. Nor are they a fair use of that material, regardless of whether that material is available on the internet.

Here is an analogy: it's fine to check out and read a book from the library--the author and publisher had agreed to such a use. It is not a fair use if I were to run into the library, make photocopies of random pages from thousands of books, staple them together, then say "Hey look, I wrote a book!" and try to sell it at Barnes & Noble.